PARLIAMENTS THAT WORK:

A CONCEPTUAL FRAMEWORK FOR MEASURING PARLIAMENTARY PERFORMANCE

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INTRODUCTION

The Parliamentary Centre and the World Bank Institute have undertaken a project to develop a conceptual framework and indicators for measuring the performance of legislative institutions. We have entitled the project "Parliaments that Work."

The project occurs at a time when there is growing worldwide concern with democratic development and good governance. As recent reports by UNDP and the World Bank have documented, there are important causal linkages between development and the quality of democratic governance in a country. Without diminishing the complexity of those relationships, in general we can say that successful development requires a healthy balance between a vital and diverse civil society, an economically competitive and productive marketplace and effective accountable government. Within this network of institutions—what we refer to as the ecology of governance—parliaments play an important role in ensuring accountability, participation and transparency in government.

The importance of parliamentary institutions is recognized by donors and programming organizations. At the same time there is disappointment with the results of parliamentary development programming, as documented in the book Aiding Democracy Abroad. As noted there and elsewhere, parliamentary strengthening has been criticized as being politically naïve and technocratic, conspicuously ignoring the

surrounding environment within which parliaments operate. In response to these concerns, a number of organizations are attempting to develop conceptual frameworks that draw attention to the critical factors in governance and allow us to better measure, and hopefully strengthen, institutional performance. Among the major studies of this kind, we would cite those of International IDEA, the United Nations University and the World Bank.

This project builds on that work by linking the measurement of governance performance as a whole to the measurement of parliamentary performance. The audience for this work includes legislative strengthening practitioners, parliamentary leaders who are planning or carrying out parliamentary strengthening programs and civil society organizations and citizens committed to democratic development.

The steps in the project are as follows: first, prepare this draft paper to be circulated for peer review; second, revise and test the framework by using it in pilot assessments of individual parliaments; and third, establish a website where the framework can be discussed and further developed.

WHAT IS PARLIAMENT?

In a nutshell, parliament is a popularly elected, representative political assembly that ensures responsiveness and accountability of government to citizens by performing two vital political functions: first, by conducting free and open political debate regarding government legislation, spending and implementation of policies; second, by representing citizens and groups in their dealings with government.

The organization, powers and effectiveness of parliaments vary widely. We are all familiar with rubber stamp parliaments that feature one party control and dominance by the executive, severely constrained

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debate, low level of legislative activities, slight influence on government and little effectiveness in representing the concerns of citizens. Next, there is a large and growing number of emerging democratic parliaments that have been a by-product of the process of democratization we have witnessed over the past ten years. Though they vary widely, they have a number of features in common including one party dominance but with emerging opposition, increasing political space for debate, rising level of legislative activities, growing influence with government, and increasing interest and effectiveness in representing citizens. Finally, there are stable democratic parliaments that vary greatly in power but are characterized by sustained multiparty competition, intense partisan debate, high level of activity with varying degrees of influence on government and well organized services for constituents.

In addition to categorizing parliaments by their degree of institutional development, we can also group them according to constitutional types. The Westminster system features the executive chosen through parliamentary elections and sitting in the legislature. In this system, government accountability centres on the relationship between government and opposition parties in parliament, with MPs and parliamentary committees controlled by party discipline. In the Congressional system, the Executive and Legislative Branches of Government are both elected directly and so the Executive sits outside parliament. In this system, accountability takes place through the checks and balances between executive and legislature and there is considerable independent power for parliamentarians and parliamentary committees. Finally, there are mixed systems featuring some combination of the Westminster and Congressional Systems.

Variations in electoral systems can also have a profound effect on the nature and operations of parliaments. Constituency based systems tend to yield majority governments but at the cost of having party representation in parliament seriously diverge from shares of the popular vote in elections. Members concentrate a lot of their time and effort in providing services to their constituents. In systems of

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proportional representation, coalition governments are more likely to be the norm, with continuing negotiations between parties as to the makeup of the coalition. Party representation in parliament corresponds closely to voter preferences but on the other hand there tends to be a weaker connection between representatives and their constituents. Here too there are mixed systems that reflect the desire of democratic reformers to combine the best features of constituency based and PR systems.

These variations in systems of parliamentary government have given rise to a traditional set of issues in parliamentary strengthening. How can rubber stamp parliaments evolve into emerging democratic parliaments? How can we best reinforce and consolidate emerging democratic parliaments? What are the advantages and disadvantages of parliamentary and electoral system types? How can stable democratic parliaments be revitalized in the face of citizen disinterest and parliament's being marginalized in policy making? These common issues should not blind us to the fact that each parliament is unique, the product of an individual history and set of circumstances. Any conceptual framework should therefore be used by those with knowledge and experience of these unique factors. It is only by combining the art of understanding parliament with the science of analysing it that meaningful results will be achieved by this (or any other) conceptual framework.

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PARLIAMENT AND GOOD GOVERNANCE

We referred earlier to the ongoing debate about democracy and development, arising partly from disappointment with the results of democratization over the past decade. It has been found that democracy

by itself - elections and representative institutions – does not necessarily produce justice and prosperity. On the contrary, they may facilitate state capture by elites more interested in opportunities for corruption than in serving the people. This deformation of democracy creates widespread public cynicism about democracy, sometimes with a growing disposition to welcome back authoritarian rule. This experience underscores the importance of effective public participation in the political process, particularly if one hopes to empower marginal groups in society and reduce poverty.

If there has been disappointment with the linkage between democracy and development, there is growing evidence that a broader set of governance values consisting of democracy plus rule of law, clean and effective government, and non-violent resolution of conflict does contribute in a major way to development. This realization has led to efforts to build conceptual frameworks that better define the essential elements of good governance and generate measures of performance. The frameworks are intended to have the following characteristics.

> Comprehensive. They should cover governance as a whole in order to capture the complexity of governance and the interdependence of institutions. Comprehensiveness helps to offset the current tendency in governance programming to divide the world into institutional sectors such as local government, bureaucracies and legislatures.
>
> Comparable. The conceptual framework should help us better understand the factors that lead to progress in governance and thus empower us to improve the results of governance interventions. This requires the ability to compare different parliaments at a given time and the same parliament over time.

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Usable. The framework should be relevant and usable in the real world where resources are limited. It should make attainable demands on the practitioners who will apply the framework and employ the results.

Among the recent examples of attempts to develop frameworks for measuring governance performance we would cite International IDEA, the United Nations University, the World Bank, UNDP and the Economic Commission for Africa. Although varying significantly in the identification and weighting of performance indicators, all of these frameworks incorporate essentially the same set of governance values that we mentioned earlier, namely democracy, rule of law, clean and effective government and peaceful resolution of conflict. If those objectives are to be realized, broad governance frameworks have to be connected to particular institutions like parliament, for it is at the institutional level that good governance rubber hits the road. In the case of parliaments, relatively little work has been done to date linking governance generally and parliamentary performance. All of the major studies cited above refer to parliament as playing an important role in building democratic values and practices, particularly in ensuring accountability of government. However, little work has been done to measure the performance of parliament in relationship to explicitly stated good governance criteria. The objective of the present study is to build just such a performance framework.

THE PROPOSED FRAMEWORK

Before developing measures of performance, we must first design the performance framework specifying three elements—the determinants of performance, the criteria of performance and the structure of performance. In developing this framework we have drawn heavily on the fields of organizational performance and performance measurement. We have treated parliament as a public sector institution with

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an important specialized job, that of ensuring open and free political deliberation and representation of citizens.

1) The Determinants of Parliamentary Performance

Regarding the determinants of parliamentary performance, our framework identifies three that are critical. (See Diagram 1) First, there is the surrounding governance context; among the key variables here are the relations between the state, the market and civil society, the extent of political space and support for active citizenship, and the impact of the global village. Secondly, performance is heavily influenced by parliamentary culture, the set of motivating and constraining beliefs and practices. What are the values and expectations associated with being a Member of Parliament? What is the relationship between leaders and followers? Thirdly, parliamentary performance is dependent on the organizational capacity of parliament, including the strengths and weaknesses of the political and administrative sides of parliament.

2) Performance Criteria

Turning to the performance criteria, parliamentary performance is judged against the following criteria: (See Diagram 2)

Financial – Does parliament operate according to acceptable standards of financial administration? This is an important matter if parliament is to stake its claim to being an important institution for ensuring government accountability.

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Compliance – Does Parliament operate according to the laws of the land and its own rules and procedures? This criterion speaks to the performance of parliament in upholding rule of law, one of the fundamental governance values.

Efficiency – Does Parliament organize itself and carry out its activities in ways that are reasonably efficient and dependable? Where this is not the case, the wider society, not to mention the executive, will dismiss parliament as chaotic and irrelevant.

Effectiveness – Does Parliament make a difference? Does it have an impact on government and society? One of the commonest criticisms of even the most efficient parliaments is that they are becoming steadily more marginalized in the decision-making processes of government.

Relevance – Does Parliament make the right difference? Does it tackle and influence the important decisions? This criterion goes to the issue of whether parliament connects to the great issues of the day.

Sustainability – Is parliament on the rise or in decline? Does it have the resources, political and otherwise, to play its part in promoting good governance? These questions are meant to probe the history of the institution as well as its prospects for the future.

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3) Structure of Performance

The structure of performance (See Diagram 2) describes the institutional means by which parliamentary performance takes place and includes the following.

Inputs – The raw materials of parliament, including MPs, staff and financial and other resources.

Activities – This describes how MPs and staff spend their time in four main lines of activity. In the parliamentary chamber, committees, party caucuses and constituencies.

Outputs – This refers to the products of parliamentary activity, notably debates, laws, resolutions, and reports and assistance to constituents.

Outcomes – This refers to the direct effects of parliamentary activities on the outside world. Our framework focuses on outcomes in relation to three governance functions—accountability, transparency and participation.

Impacts – This refers to the longer term and more indirect influence of parliament on the set of good governance, specifically democracy, rule of law, clean and effective government and peaceful resolution of conflict.

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INDICATORS OF PARLIAMENTARY PERFORMANCE

With that framework in place, we now approach the task of devising indicators of parliamentary performance. Here we refer to both the determinants of performance and the performance itself. We include both quantitative and qualitative indicators, the former appropriate to measuring the volume and efficiency of inputs and the latter to measuring the effectiveness and relevance of outcomes. As used here,

indicators function like headlights drawing our attention to what is important, but they can also blind us to important things outside the field of vision. We have attempted to devise indicators that help us focus on what matters and plan practical action. The indicators measure aspects of performance for which parliament should be held directly accountable as well as others where parliament may be less though still somewhat accountable.

The sets of indicators are as follows:

Governance Context. These indicators measure important aspects of the relationship between parliament and the external governance environment, highlighting in particular the structure of state power, key non-governmental actors and global influences.

Parliamentary Culture. This set of indicators measures important aspects of parliamentary motivation and values, highlighting the role of political parties, relationship of MPs to constituents and the relationship between government and opposition in parliament.

Parliamentary Organization. This set of indicators measures key aspects of parliamentary organization, referring in particular to political leadership and administration, the role of the professional secretariat and the financial and other resources available to parliament.

Parliamentary Performance. This set of indicators measure parliamentary performance as such, referring to four lines of parliamentary business namely legislation, the budget, oversight and representation.

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To get a better sense of how this framework works, we next present a set of test indicators of parliament's role in the budget process, perhaps its single most important role given the critical importance of the budget in setting priorities and allocating resources. We conceive of the budget as a continuous cycle of activities ranging from pre-budget consultations to post expenditure audit. The budget is a particularly good way of connecting parliamentary strengthening activities to critical policy issues such as poverty reduction and control of corruption. Notwithstanding the importance of the budget and its connection with the historic rise of parliament, many parliaments have now been marginalized in the budget process. Faced with this situation, many parliaments now assign a high priority to strengthening their role in the budget process. The following set of indicators has been designed with this goal in mind.

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TEST INDICATORS—PARLIAMENT AND THE BUDGET PROCESS

CONTEXT

To what extent

1. Is the budget an effective tool in addressing the country's most urgent and important issues?

2. Does parliament have a recognized constitutional role in the budget process?

3. Is budget making power concentrated in certain parts of the executive?

4. Does parliament have constructive relations with those parts of government?

5. Is budget making open and accessible to citizens?

6. Does parliament facilitate citizens' participation in the budget process?

7. Is the budget under the control of international organizations and foreign donors?

PARLIAMENTARY CULTURE

To what extent

1. Is there a tradition of parliamentarians playing an active role in the budget process?

2. Do parliamentarians believe they can and should influence the budget?

3. Do political parties facilitate discussion of budget matters amongst their Members?

4. Do political parties encourage their members to play an active role in the parliamentary budget process?

5. Do MPs consult their constituents and represent their interests in the budget process?

6. Do MPs use the budget as a means of advancing their own private interests?

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7. Do government MPs accept the right of the opposition to criticize and oversee the budget?

8. Do opposition MPs accept the right of the government to get its budget passed following adequate parliamentary scrutiny?

PARLIAMENTARY ORGANIZATION AND CAPACITY

To what extent

1. Do MPs have the knowledge and skills to participate effectively in the budget process?

2. Does parliament provide opportunities for MPs to improve their knowledge and skills?

3. Do political parties assign parliamentary budget responsibilities to Members based on their knowledge and skills?

4. Do party caucuses have access to budget expertise?

5. Does the parliamentary secretariat have the capacity to support the parliamentary budget process?

6. Does parliament have the other resources to support the budget process? (e.g., information systems.)

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PARLIAMENTARY PERFORMANCE

To what extent

1. Do parties mobilize and organize their members to participate in the budget process?

2. Do secretariat staff serve MPs during the budget process?

3. Are budget activities organized in the four key parliamentary venues—committees, the chamber, constituencies and caucuses?

4. Are the activities organized by parliament sustainable? (i.e., will parliament continue the activities after foreign assistance ends?)

5. Are budget activities in compliance with parliamentary rules and procedures?

6. Do parliamentary budget outputs, (debates, amendments, resolutions and reports) achieve acceptable quality and quantity?

7. Does parliament influence government budgetary decisions and behaviour?

8. Does parliament hold government to account for its budget?

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9. Is the parliamentary budget process relevant? To what extent does it address the critical issues of the day? (e.g. fighting corruption and poverty reduction)

10. Does parliament open the budget process and make it accessible to citizens, civil society organizations and the media?

11. Does parliament facilitate public participation in the budget process?

12. Does the parliamentary budget process contribute to realizing the governance goals of democracy, clean and effective government, rule of law and conflict resolution?

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DIAGRAM 1

PARLIAMENTS THAT WORK: THE PERFORMANCE FRAMEWORK

The Determinants of Parliamentary Performance

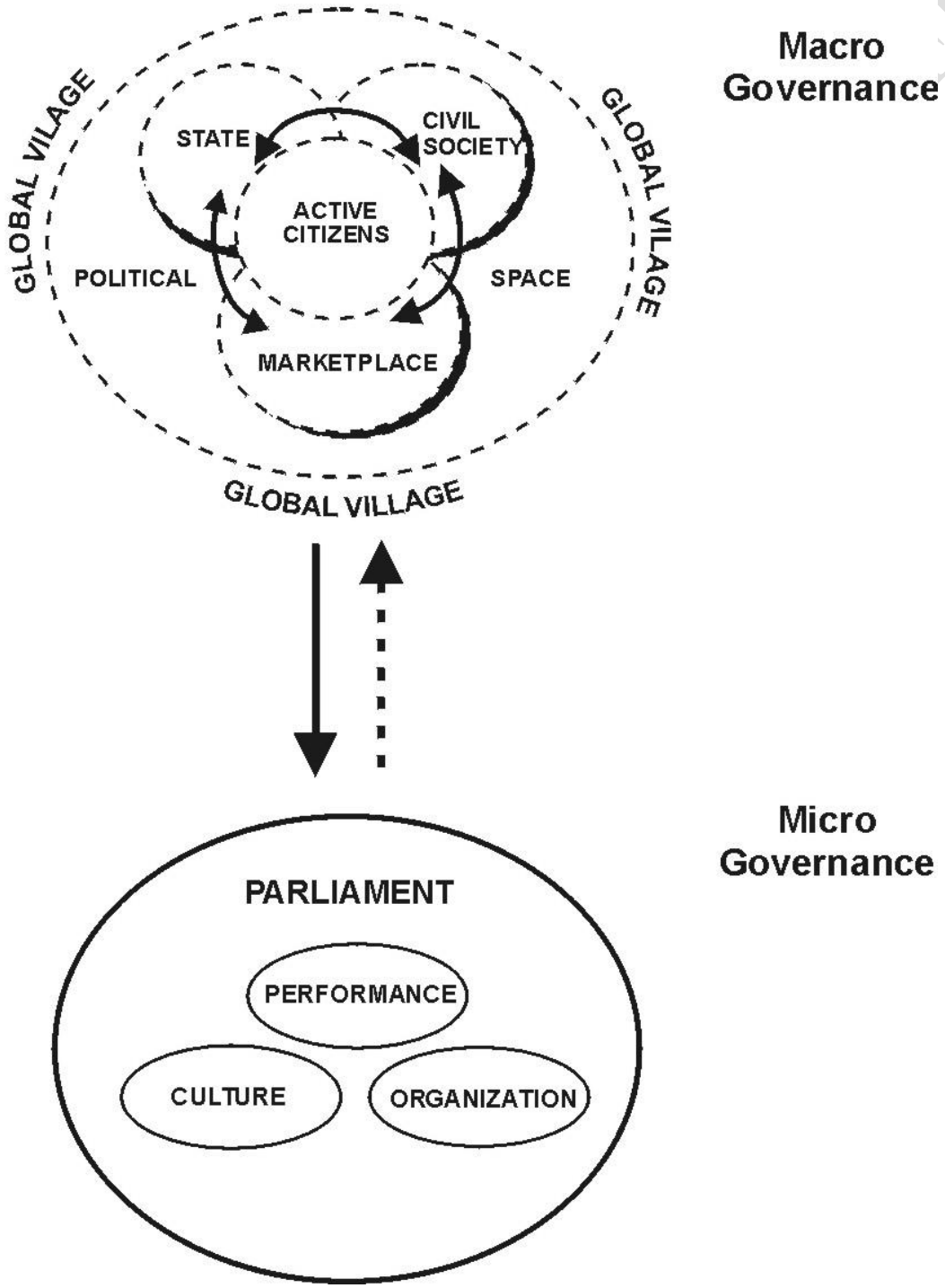

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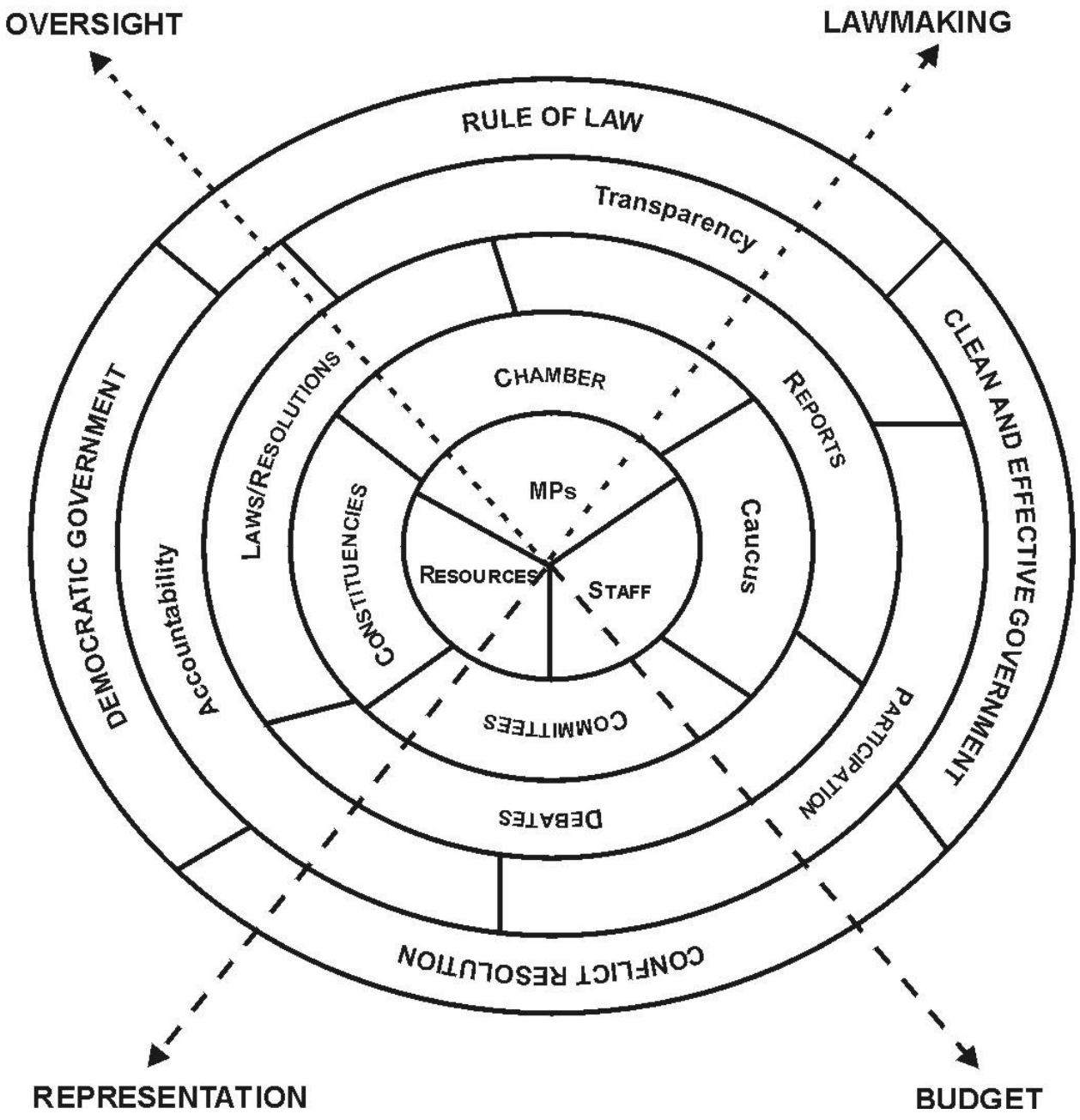
DIAGRAM 2
CRITERIA OF PARLIAMENTARY PERFORMANCE

		Efficiency	Effectiveness	Relevance	Sustainability		Finance	Compliance
INPUTS	Secretariat Political Leadership Resources							
ACTIVITIES	Chamber Committees Constituencies Caucus							
OUTPUTS	Reports Debates Legislation Etc.							
OUTCOMES	Accountability Transparency Participation							
IMPACTS	Democracy Rule of Law Effective Government Conflict Resolution							

DIAGRAM 3

THE PERFORMANCE MODEL